

24PSCV00420 24PSCV00420

County: los-angeles

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Case Number: 24PSCV00420 Hearing Date: August 13, 2026 Dept: H

Borrayo, et al. v.

Mojica, Case No. 24PSCV00420

ORDER ON MOTION

FOR SUMMARY JUDGMENT

Defendant

Elsa Moreno Mojica's Motion for Summary Judgment is DENIED without prejudice.

Background

Plaintiffs

Adriana Moreno Borrayo and Jose Ruben Moreno Mojica (Special Administrator)

(together, "Plaintiffs") allege as follows:

Plaintiffs' sister, Elsa Moreno

Mojica ("Defendant"), falsified Plaintiffs' mother's signature on a quitclaim

deed ("Subject Deed") involving the property located at 1295 Cornelia St. in

Pomona ("Subject Property"). On January 25, 2024, Defendant sold the Subject Property.

On September 4, 2025, Plaintiffs filed a First

Amended Complaint ("FAC"), asserting a fraud cause of action against Defendant.

On July 21, 2026, Defendant filed the instant motion

for summary judgment.

Legal Standard

“A party may move for summary judgment. . . if it is contended that the action has no merit or that there is no defense to the action or proceeding.” (Code Civ. Proc., § 437c, subd. (a)(1).)

“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

“On a motion for summary judgment[/adjudication], the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) “A defendant or cross-defendant has met that party's burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).)

Discussion

Defendant moves the court for summary judgment in her favor and against Plaintiffs, on the grounds Plaintiffs' FAC is time-barred under Code of Civil Procedure section 338.

Procedural Issues

Defendant

filed and served via electronic mail the instant motion for summary judgment on July 21, 2026. Further, declarations in support of Defendant's motion were filed and served via electronic mail on August 6, 2026. The hearing for this motion is set for August 13, 2026.

Code of

Civil Procedure section 437c, subdivision (a)(2) provides that “[n]otice of the

motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.” (Code Civ. Proc., § 437c, subd. (a)(2) [emphasis added].) Code of Civil Procedure section 1010.6, subdivision (a)(3)(B) provides for two court days’ additional notice for electronic service.

Here,

Defendant has provided insufficient notice for the motion for summary judgment under section 437c. Having served and filed the motion on July 21, 2026, Defendant has only provided 23 days-notice.

Additionally,

the Court notes Defendant failed to file a separate statement with her motion for summary judgment, though one is referenced in the motion. (See Mot., p. 2, line 12.) Code of Civil Procedure section 437c, subdivision (b)(1) requires “a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., section 437c, subd. (b)(1).)

Accordingly,

Defendant’s motion for summary judgment is DENIED without prejudice as untimely.